



13 November 2019

P.L and L.G Killeen
C/- Bonisch Consultants
PO BOX 1262
Invercargill 9840

Attention: Christine McMillan

Dear Ms McMillan,

Resource Consent 360/10/19/221 – P L and L G Killeen - Two Lot Urban Subdivision – 21 Fergus Square, Te Anau

Thank you for your resource consent application received by Council on 4 September 2019.

Your application has been considered by Resource Management department staff under delegated authority and **granted subject to the conditions in the resource consent** enclosed with this letter.

You have rights of objection and appeal in respect of this decision in accordance with Sections 120 and 357A of the Resource Management Act 1991.

I acknowledge receipt of the \$600.00 resource consent processing deposit. The total cost incurred in processing this application was \$1372.50 inclusive of GST. Accordingly, an invoice for \$676.42 is to follow. This is after a discount of \$96.08 has been made in accordance with Section 36AA of the Resource Management Act 1991 - please refer to the attached letter.

If you have any further questions, please do not hesitate to contact the undersigned.

Yours faithfully

Chris Pearse-Smith
Consultant Planner

Outline of Resource Consent 360/10/19/221

The site subject to this application is located at 21 Fergus Square, Te Anau which is located within the Urban Zone as defined in the Southland District Plan 2018 (SDP).

This application seeks approval for the subdivision of the site legally described as Section 33, Block I, Manapouri Survey District held in Record of Title SL194/112. The site is approximately 1993m² in size.

The applicant describes the existing site as an “oblong shape which narrows towards Fergus Square” which is agreed for the purposes of this report and it is further noted that the area fronting Fergus Square is located on the elbow of the road bend. The existing site contains an existing residential dwelling house which is accessed off Mokonui Street via a right of way easement over Sec 8 Blk I Manapouri SD (held in Record of Title SL176/189).

The subject site will be subdivided into the following two lots:

- Lot 1, being approximately 1,203m² of urban land containing an existing dwelling and garage; and
- Lot 2, being approximately 791m² of bare urban land.

Proposed Lot 1 will no longer have legal frontage to Fergus Square, while proposed Lot 2 will retain this legal frontage. Proposed Lot 1 will have physical access to Mokonui Street via the existing right of way, which has been formed previously. A new vehicle access proposed to provide access for Lot 2 from Fergus Square.

Proposed Lot 1 has existing connections to a reticulated water supply, stormwater and sewer, and telecommunications and electricity services off Fergus Square. The applicant has provided for the appropriate easements (identified as Area B) on their Scheme Plan, where the realigned services will be located.

Proposed Lot 2 will establish new connections to reticulated water supply, stormwater and sewer services, and telecommunications and electricity off Fergus Square.

The site is not subject to natural hazards. The applicant has undertaken a preliminary search of the Environment Southland records which confirms the site is not registered on the Selected Land Use Sites (SLUS) register.

The application confirms compliance with the District Plan bulk and location requirements, accordingly no land use component is sought as part of this application.

The proposed activity requires resource consent as a **controlled activity** pursuant to Rule SUB.2(4) of the District Plan.

Activity Status:

The proposed activity requires resource consent for the following reason:

- A **controlled** activity subdivision consent pursuant to Rule SUB.2(4) as the proposed subdivision meets the following criteria:
 - (a) There is a minimum buildable area of 15 metres x 12 metres free of impediments and capable of meeting bulk and location requirements of the Urban Zone.

- (b) All infrastructure (including water, stormwater, wastewater, electricity, telecommunications) will be installed to the boundary as a minimum by the developer, as part of the subdivision consent, where that infrastructure is provided within that Urban Zone.
- (c) There is no new access off a State Highway.
- (d) No allotment is identified as being subject to natural hazards as shown in the Hazard Overlay on the District Plan Maps.
- (e) No allotment includes part or all of the National Grid Yard or National Grid Corridor.
- (f) The standards set out in the Southland District Council Subdivision, Land Use and Development Bylaw 2012.
- (g) The site on which the activity is to be undertaken does not contain an item of Historic Heritage as listed in Schedule 5.2.
- (h) The subdivision boundaries of any allotments, which have existing buildings are aligned to ensure that the buildings comply with the requirements of the Building Act 2004 and the Building Code 2004.

Reasons for approving Resource Consents 360/10/19/140 are:

- a) Pursuant to Sections 87A(4), 104A and 106 of the Resource Management Act 1991, Council is satisfied that subject to compliance with the conditions of this resource consent, the adverse effects of the activity will be less than minor and further that for the reasons outlined below, Council is also satisfied that subject to compliance with the conditions of this resource consent, the proposed activity will not compromise the amenity values of the Urban Zone. This determination has been made on the basis of the information provided with the application.
- b) In accordance with section 104(1)(b) of the Resource Management Act 1991, the objectives and policies of the Southland District Plan were taken into account when assessing the application. The application will not be contrary to the Urban Zone Chapter and Subdivision Chapter objectives and policies of the Southland District Plan 2018. The proposal is considered to be consistent with the objectives (SUB.1-2 and URB.1) and policies (SUB.1, SUB.4, SUB.7, SUB.11, SUB.16, URB.1-3 and URB.5).
- c) Written approval(s) under Sections 95A and 95E of the Resource Management Act 1991 were not required as Council does not consider any party adversely affected by this proposal. This is because any adverse effects that may result as part of the subdivision will be confined to the subject site and would be less than minor, for the reasons discussed below.
- d) Council notes that the site is located within the Urban Zone and the proposal meets the relevant objectives and policies for subdivisions for this zone. Therefore, any adverse effects on neighbouring properties within the vicinity arising from the subdivision and future land use consent are anticipated to be less than minor. Any future development proposal that does not comply with the District Plan would require resource consent. Consequently, in terms of Section 95 of the Act, Council has not required any consultation with any neighbouring party as the outcome sought is anticipated for the Urban Zone.

- e) Council's Roding Contract Manager assessed the application and has recommended conditions which requires the accessway to Lot 2 be constructed to Council's Subdivision, Land Use and Development Bylaw 2012 RO3 standard. Further design requirements are also recommended as conditions of consent. The Roding Contract Manager also indicated **"there is a stormwater mud sump within the kerb line in front of this property. The proposed urban accessway must be able to be placed adjacent to this sump or alternatively works to either relocate the sump or reset the sump within the accessway shall be included in the construction of the accessway."** A condition of consent is recommended to address the access in relation to the stormwater sump location. Subject to compliance with the recommended conditions of consent, any adverse effects of the proposal on the transportation network are assessed as less than minor.
- f) A new easement will be required for proposed Lot 1 over proposed Lot 2 in order to allow for water, stormwater, wastewater, and telecommunications and electricity services to be connected from Fergus Square. The provided Scheme Plan indicates the location of this easement as Easement Area 'B'. Council's Water and Waste Services Engineer, Joe Findley, has assessed the application and has recommended conditions in regard to laying new services through this new easement. Mr Findley has also recommended a number of conditions requiring the new services connections to proposed Lot 2 to be established in accordance with Council's Subdivision, Land Use, and Development Bylaw, which are outlined below. Subject to compliance with the recommended conditions of consent, any adverse effects of the proposal in regard to service infrastructure will be assessed as less than minor.
- g) Council has assessed this application against the National Environmental Standard for Assessing and Managing Contaminants in Soil to Protect Human Health 2011 (the NES). The application confirms this site is not identified in the Environment Southland's Selected Land Use Sites (SLUS) register and that the applicant has no knowledge that the site has been used, or is more than likely than not to have been used, for a HAIL listed activity or industry. No change in land use is proposed as a result of this proposal. Consequently, the provisions of the aforementioned National Environmental Standard are not invoked by this application.
- h) There are no known sites of iwi or archaeological significance recorded as being present at this site. There are no other notations for the site under the District Plan.
- i) Council has considered Rule FIN.1, B.2 Reserves and concluded that, in this instance, a financial contribution for reserves under the Resource Management Act 1991 is required as there is one additional allotment being created. The contribution shall be based on 1% of the market value (exclusive of GST) of the land within Lot 2 being created. The contribution shall be paid to Council when the Section 224(c) application is lodged.

Resource Management

Costing Sheet - Non-Notified Application (all costs are inclusive of GST)

Name	Address	Consent No(s)
P.L and L.G Killeen	21 Fergus Square, Te Anau	360/10/19/221
	Hours	Total
Resource Management Staff - Vetting application - Reviewing and assessing application - Liaising with Council - Drafting decision - Review, finalise and issue decision - Administration associated with processing application	6.5 hours @ \$150.00 per hour	\$1012.50
Water and Waste staff	2 hour @ \$120.00 per hr	\$240.00
Community Engineer staff	1 hour @ \$120.00 per hr	\$120.00
	Total	\$1372.50
	Deposit	\$600.00
	7% Discount	96.08
	Invoice	\$676.42



Pursuant to the Resource Management Act 1991, the Southland District Council grants to:

P.L and L.G Killeen

A resource consent subject to the conditions and term set out below:

File No(s):	Resource Consent 360/10/19/221
Purpose of the Consent(s):	Two Lot Urban Subdivision
Property Address:	21 Fergus Square, Te Anau
Legal Description:	Section 33 Block I Manapouri Survey District (RT SL194/112)
Valuation Reference:	3044044900
Date of the Decision:	13 November 2019
Term of Consent:	This consent will lapse five years from the date of the decision if not given effect to.

Marcus Roy

Team Leader - Resource Management

As

Authorised Officer

Schedule of Conditions:

1. That the plans submitted to the Southland District Council for certification under Section 223 of the Resource Management Act 1991 shall generally be in accordance with the application made on 4 September 2019 and Scheme Plan prepared by Bonisch Consultants (File Reference: 6985, Review C), dated 23 August 2019 as approved and attached to this consent, except as varied by the conditions of this consent.
2. Prior to the Council signing the Survey Plan pursuant to Section 223 of the Resource Management Act 1991, the provision shall be made for the granting of:
 - a) The right to convey water, telecommunications and electricity,
 - b) The right to drain wastewater and stormwater, and
 - c) Any other easements found to be necessary during survey.

All necessary easements shall be shown in the Memorandum of Easements and the right to convey telecommunications in the favour of Chorus shall be included in the in the Memorandum of Easements in Gross attached to the Survey Plan and shall be duly granted or reserved.
3. As per the SDC Sub-division, Land Use and Development Bylaw, all services for urban sub-divisions are to be provided for each Proposed Lot at the time of sub-division. Prior to the issue of section 224(c) Certificate, the applicant will be required to;
 - a) Re-lay the existing sewer connection for Lot 1 within the proposed easement B. Connection from proposed Lot 2 can be made into this line as a shared lateral within the easement B. All work is to be in accordance with the Council's sub-division, land use and development bylaw 2012 and the Council's sewage drainage bylaw, including all As-Built information.
 - b) Establish a new separate connection to the Council reticulated water network on Fergus Square for Proposed Lot 2. All work is to be in accordance with the Council's sub-division, land use and development bylaw 2012 and the Council Water Supply Bylaw, including all As-Built information. Each new connection is to have an acu-flo toby manifold installed in the correct box at the Council's road boundary. Please note that Council Water and Waste Department have made changes to approvals for connecting to existing Council infrastructure. Only Downer Ltd and Te Anau Earthworks Ltd are allowed to make connection into the existing water reticulation.
 - c) Re-lay the existing water connection for Lot 1 within the proposed easement B. All work is to be in accordance with the Council's sub-division, land use and development bylaw 2012 and the Council Water Supply Bylaw, including all As-Built information. Each new connection is to have an acu-flo toby manifold installed in the correct box at the Council's road boundary.
 - d) The applicant is to satisfy Council, by way of letter from the appropriate authorities that the power and telecom utilities have been provided to the satisfaction of the utility operator and are in the appropriate location on the boundary.
4. A new urban private accessway to Lot 2 shall be designed and constructed to comply with Council's Roding Policy Procedure 10 (Vehicle Accessways) and Subdivision and Land Development Bylaw 2012, and ensure that:

- a) The minimum dimensions of the accessway shall comply with Drawing R03 of Council's Subdivision and Land Development Bylaw 2012.
 - b) The accessway shall be sealed with two coat chip seal.
 - c) When kerb and channel has been laid the kerb shall be appropriately modified to allow vehicular access without damage to the kerb.
 - d) No silt or gravel shall be able to be transferred from the vehicle access or crossing on to the roadway.
 - e) There is a stormwater mud sump within the kerb line in front of this property. The proposed urban accessway must be able to be placed adjacent to this sump or alternatively works to either relocate the sump or reset the sump within the accessway shall be included in the construction of the accessway.
 - f) That the Rooding Contract Manager shall have approved the location and construction of the accessway and to Council's standards current at the time of construction prior to the issue of the Section 224(c) certificate.
5. That prior to the issue of the Section 224(c) certificate for this subdivision the consent holder shall pay a 1% reserves contribution for the additional title being created. At the time of the Section 224(c) certificate application, the consent holder shall provide a market valuation of the additional titles which can then be used as the basis for assessing 1% of the market value.

Advice Notes

- A1. When the consent holders are ready to make connection to Council assets, they will be required to make an Application to Connect to Council Services. This application currently carries a fee of \$311.78 and has a bond of \$250.00 under the Council's current fees and charges schedule. The conditions above do not constitute any approval to undertake any of the works to connect to Council infrastructure. The application to connect to Council services is the only means by which access may be granted to existing infrastructure. Any instance where this is not complied with may result in the disconnection of any non-approved connections and the responsible parties be sought for cost recovery by Council.
- A2. Please note that Council's Water and Waste Department have made changes to approvals for connecting to existing Council infrastructure. Only Downer Ltd and Te Anau Earthworks Ltd are allowed to make connection into the existing water reticulation.
- A3. All stormwater generated as a result of any development on proposed Lot 2 is to be directed to soakage to ground. The stormwater run-off from Lot 1 and the existing developments is to be managed within proposed Lot 1.
- A4. Any work to be carried out within the road corridor (boundary to boundary) will require an "Application for Access to Council Assets and Infrastructure". This application will need to be lodged with Council's Corridor Manager at least 15 working days prior to work commencing.

The consent holders shall make separate application and pay the appropriate permit fees and Bond as set out in Council's Schedule of Fees and Charges. All works are to be carried out at the consent holders' expense.

Any questions please contact Corridor Management Administration on 800 732 732.

- A4. A building consent will be required for the alterations to the existing sewer, stormwater and water assets which share connections inside the boundary.
- A5. This application sought is for **subdivision consent only**. The application advises of the ability for a future dwellinghouse to comply with the District Plan. If these plans were to change as development proceeds, then they would need to be re-assessed for compliance.

